

20STCV43428 20STCV43428

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Rizvi v. Subeh, et al., Case No. 20STCV43428

ORDER ON EX PARTE APPLICATION FOR TEMPORARY RESTRAINING ORDER

Pending before the Court is Plaintiffs' ex parte application for (1) temporary restraining order; and (2) order shortening time on Plaintiffs' anticipated motion to enforce settlement. For the reasons stated herein, the Court denies the application, without calling the matter for hearing. (Wilburn v. Oakland Hospital (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court].)

Ex parte proceedings "are designed to afford relief on an essentially emergency basis." (Newsom v. Superior Ct. (2020) 51 Cal.App.5th 1093, 1097.) As such, an applicant seeking ex parte relief "must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte." (Cal. Rules of Court, rule 3.1202(c).) "A trial court should deny an ex parte application absent the requisite showing." (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal. App. 5th 253, 257.) Moreover, a party "cannot create a justification for emergency relief by sitting on her rights until she creates an emergency situation." (Davenport v. Blue Cross of California (1997) 52 Cal. App. 4th 435, 454-55.)

Here, the Court determines that the purported emergency is one of Plaintiffs' own creation. The Mandatory Settlement Conference occurred over six months ago, on March 2, 2026. Shortly thereafter, on March 6, 2026, Defendants' counsel forwarded to Plaintiffs' counsel a proposed written settlement agreement. (Declaration of Paul A. de Lorimier ¶ 5.) [FN] Plaintiffs did not respond with their proposed edits until May 27, 2026, the day before the Order to Show Cause Re: Dismissal (Settlement). (Declaration of Nicole Soma ¶ 10.) Then, after receiving a further response from Defendants on June 25, 2026, Plaintiffs waited until August 6, 2026 to provide their counter-redlines. Thus, rather than seek court intervention, Plaintiffs engaged in continued back-and-forth redlines despite the looming September 13, 2026 election. And given the passage of time between Defendants' proposed settlement agreement and Plaintiffs' proposed edits (both from March 6, 2026 to May 27, 2026 and then from June 25, 2026 to August 6, 2026), there is no indication that Plaintiffs acted with urgency, yet they now ask the Court to decide the instant application, accompanied by voluminous declarations and exhibits, on September 11, 2026 -- just two days before the election. Under these circumstances, the Court declines to grant emergency ex parte relief. The Court similarly denies the request to shorten time on Plaintiffs' motion to enforce settlement. The Court observes that while a hearing date has been "reserved," no motion to enforce settlement has been filed as of date.

The application is denied.

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[FN] Notably, the date that Defendants circulated the draft settlement agreement -- March 6, 2026 -- was omitted from Plaintiffs' ex parte application, though Plaintiffs acknowledge they did not return their redlined version of the draft until May 27, 2026. (Declaration of Nicole Soma ¶¶ 8, 10.)